INCOMPLETE (less so after gap-fill pass, 2026-11-06). Covered: public opinion (US, global, UK, EU), union and bargaining cases, EU AI Act timeline and omnibus, Trump December 2025 pre-emption order and DOJ Task Force follow-through, the July 2025 Senate 99-1 vote, US state laws (Colorado repeal-and-replace, California SB 53, NYC LL144 and the Comptroller audit, Illinois HB 3773, Texas TRAIGA), UK (Action Plan, AISI rename, no AI bill), surplus capture (BLS labour share, hyperscaler capex, Danish wage evidence, Acemoglu), the anti-AI case on copyright (Bartz, Thomson Reuters v. Ross) and energy (IEA, LBNL), and the grifter layer (FTC Operation AI Comply and later cases including Air AI; SEC AI-washing). STILL MISSING: UK ONS labour share; water-use estimates; Bender/Gebru, Marcus and Zitron as OPINION; NYT v. OpenAI and Getty v. Stability status; hyperscaler Q3 2026 figures from filings; final outcomes for Ascend Ecom, FBA Machine and Air AI; size of the AI course/advice market; outcome of xAI/DOJ v. Colorado; WGA 2026 contract text; Kaiser dispute outcome. All gap-fill findings rest on search-engine extracts, not fetched pages (marked "search extract").

Track 9: Social and political fallout

Last updated: 2026-11-06. Labels: EVIDENCE = measured/primary data; FORECAST = projection; OPINION = argument, vendor or consultancy view.

Verification note (added 2026-11-06): page fetches were blocked for most hosts this session, so findings marked search summary, search extract or snippet rest on search-engine extracts of the cited URL. Quotation marks inside findings mark wording as reported by that source; only quotes in this file's "Verbatim quotes" section (and in 13-quotes.md) were checked against a fetched page. Corrections from the verification pass are in verification.md.

Method warning for this file. No source page was opened directly (also true of the gap-fill pass, whose findings are marked "search extract"). Every finding below comes from web-search result summaries that cite the URL given. The URLs are the primary pages (Pew, Gallup, KPMG/University of Melbourne, NUHW, law-firm notes on the Official Journal), but the numbers have not been checked against the page text in this session. Treat every number as "reported by search, to re-verify" before publishing. There are no verbatim quotes in this file for that reason.

Summary

- **US public concern is rising, not settling.** Pew's June 2026 survey has 52% of US adults more concerned than excited about AI in daily life (37% in 2021, 50% in June 2025), and 71% expecting AI to mean fewer jobs over 20 years (64% in 2024). Gallup/Bentley in July 2026 found the share saying AI does more harm than good jumped from 31% (2025) back to 39%, close to the 2023 level. The two-year improvement in US attitudes ended in 2026.
- **The shift is driven by the young and by jobs.** Under-30s moved most in both Pew (55% now more concerned than excited) and Gallup (18-29 trust in business AI use fell from 30% to 20% in one year). Democrats overtook Republicans on job worry in 2026 (Pew, September 2026). AI is becoming a partisan and generational issue in the US.
- **Use and trust have decoupled globally.** KPMG/University of Melbourne (48,000+ people, 47 countries, Nov 2024 to Jan 2025): 66% use AI regularly on purpose, only 46% are willing to trust it, and trust fell compared with the 2022 wave. People adopt AI while distrusting it. That is not the same thing as "resisting a new way of working".
- **Geography splits sharply.** Anglosphere and parts of Europe are the most nervous (US and Italy 50% more concerned than excited in Pew's 25-country 2025 survey); Asia is the most

positive (South Korea 16%, India 19% more concerned). Edelman reports 72% trust in AI in China against 32% in the US.

- **Unions are winning contract language, not stopping deployment.** WGA (2023, renewed 2026), SAG-AFTRA (video games July 2025, TV/theatrical June 2026), and the Commonwealth Bank reversal (August 2025) all produced consent, disclosure, credit or redundancy protections. The 2026 SAG-AFTRA deal requires producers to show "significant additional value" before using an AI performer (as reported). Strikes in 2026 (Kaiser therapists, ProPublica) were one-day actions.
- **The CBA case cuts against the thesis.** The bank cut 45 call-centre roles claiming a voice bot had reduced call volumes; the union said volumes rose and staff were on overtime, and CBA conceded the roles were not redundant. That is a failure of the business case and of measurement, not of workers' readiness.
- **US state AI law: passed, delayed, narrowed, barely enforced.** Colorado's 2024 AI Act was delayed (Aug 2025) and then repealed and replaced (May 2026) with a narrower disclosure law effective January 2027, before any of it took effect. New York's State Comptroller found NYC's AI hiring-audit law (in force since July 2023) ineffectively enforced (Dec 2025). Congress rejected federal pre-emption 99-1 in July 2025; the executive branch then pursued it through an order and a DOJ task force. The UK has no AI bill.
- **The surplus is flowing to capital so far, on thin evidence.** US labour share fell to 54.4% in Q4 2025 (BLS) while four hyperscalers guided to roughly $700-745bn of 2026 capex. The best micro study (Denmark, 25,000 workers) finds no effect of chatbots on earnings or hours, with only a small share of time savings reaching pay.
- **Copyright and energy give critics real ground.** Anthropic's $1.5bn class settlement (final approval July 2026) and the Third Circuit's Sept 2026 ruling against Ross (first appellate AI-training fair-use decision) show the legal cost is real. IEA projects data-centre electricity to more than double to about 945 TWh by 2030.
- **Regulators police AI over-claiming, including agent claims.** FTC Operation AI Comply (2024) and the August 2025 Air AI suit (an agent marketed to small businesses as replacing staff) target the pitch an agentic-AI vendor makes; SEC "AI washing" cases (Presto, Nate) were about humans hidden behind an AI label.
- **Regulation is announced faster than it is enforced.** The EU's Digital Omnibus on AI (Regulation (EU) 2026/1744, in force 27 July 2026) pushed high-risk obligations from August 2026 to December 2027 (standalone) and August 2028 (embedded in products). I found no reliable report of any AI Act fine to date. In the US, the December 2025 executive order tries to pre-empt state AI laws by litigation and funding pressure; its legal force is disputed.

Key findings

Public opinion: United States, trend

- **[EVIDENCE]** 52% of US adults say they are more concerned than excited about the increased use of AI in daily life, up from 37% in 2021. Search summaries disagree on the "more excited" share (9% or 11%); check the topline. Survey fielded June 22-28, 2026, n=3,488 US adults (Pew's American Trends Panel, probability-based). Pew Research Center, 18 Aug 2026. https://www.pewresearch.org/short-reads/2026/08/18/young-adults-in-the-us-are-increasingly-wary-of-ai/ (topline: https://www.pewresearch.org/wp-content/uploads/sites/20/2026/08/SR_26.08.19_young-adults-ai_topline.pdf)
- **[EVIDENCE]** 71% of US adults expect AI to lead to fewer jobs over the next 20 years, up from 64% in 2024; about 5% expect more jobs. 55% of under-30s are now more concerned than

excited, and young adults are now about as likely as 30-64 year olds to expect fewer jobs. Same Pew release and topline, 18 Aug 2026. https://www.pewresearch.org/short-reads/2026/08/18/young-adults-in-the-us-are-increasingly-wary-of-ai/

- **[EVIDENCE]** June 2025 baseline: 50% more concerned than excited, 10% more excited, 38% both; n=5,023 US adults. Pew, 2025 (reported via MarketingProfs summary of the Pew release). https://www.marketingprofs.com/charts/2025/53727/Americans-more-concerned-than-excited-about-ai-study-pew
- **[EVIDENCE]** Partisan shift: the share of Democrats expecting AI to lead to fewer jobs rose 17 points, while Republicans' views changed little; in the June 2026 survey 56% of Democrats were more concerned than excited against about half of Republicans. Pew, 16 Sep 2026. https://www.pewresearch.org/short-reads/2026/09/16/democrats-are-now-more-worried-than-republicans-about-ai-and-its-impact-on-jobs/ (topline: https://www.pewresearch.org/wp-content/uploads/sites/20/2026/09/SR_09.16_26_ai-partisan-views_topline.pdf)
- **[EVIDENCE]** Public vs AI experts: Pew surveyed 5,410 US adults and 1,013 AI experts (defined as authors or presenters at 2023 or 2024 AI conferences; expert fieldwork Aug 14 to Oct 31, 2024). Experts were consistently far more optimistic than the public, including about jobs; both groups wanted more regulation and more personal control. Pew, 3 Apr 2025. https://www.pewresearch.org/internet/2025/04/03/how-the-us-public-and-ai-experts-view-artificial-intelligence/ (PDF: https://pewresearch.org/wp-content/uploads/sites/20/2025/04/pi_2025.04.03_us-public-and-ai-experts_report.pdf). Note: the expert sample is conference participants, so it over-represents people whose careers depend on AI.
- **[EVIDENCE]** Gallup/Bentley, 2026: share saying AI does more harm than good rose from 31% (2025) to 39% (2026), close to 40% in 2023. The 11-point rise among young adults was the largest of any age group. 79% expect AI to reduce US jobs over 10 years (73% in 2025, 75% the year before). 70% now say they are at least somewhat knowledgeable about AI (64% in 2024). Gallup, "Americans Cool Toward AI", 28-29 Jul 2026. https://news.gallup.com/poll/712751/americans-cool-toward.aspx
- **[EVIDENCE]** Gallup/Bentley trust in business: 27% trust businesses "a lot" or "some" to use AI responsibly in 2026, down from 31% in 2025 and up from 21% in 2023; among 18-29s, trust fell from 30% to 20% in a year. 2025 wave: web survey, n=3,007, May 5-12, 2025. Bentley University / Gallup. https://www.bentley.edu/news/do-americans-trust-business-and-ai and https://news.gallup.com/poll/712751/americans-cool-toward.aspx
- **[EVIDENCE, conflicting]** HarrisX poll of registered voters (July 2026) found more than half of Americans have a favourable view of AI. Different question (favourability vs concern/excitement) and different sample. HarrisX / New York Post, Jul 2026. https://www.harrisx.com/posts/new-york-post-most-american-voters-have-favorable-view-of-ai----despite-media-focus-on-controversies

Public opinion: global and by country

- **[EVIDENCE]** Pew Spring 2025 Global Attitudes Survey, 25 countries: median 34% more concerned than excited, 42% equally both, 16% more excited. No country had "more excited" as the largest group. Concern highest in the US and Italy (50% each), with Australia, Brazil and Greece near half; lowest in South Korea (16%) and India (19%). Older adults more concerned than younger adults in 18 of 25 countries; women more worried than men in over half. Median 55% trust their own country to regulate AI; trust in the US and China to regulate AI is lower. Pew, 15 Oct 2025. https://www.pewresearch.org/global/2025/10/15/how-people-around-the-world-view-ai/ (PDF: https://alpha.pewresearch.org/pewresearch-org/wp-content/uploads/sites/20/2025/10/pg_2025.10.15_ai_report.pdf). Note: the "older more concerned"

pattern in this 2025 global data contrasts with the 2026 US data where the young moved most.

- **[EVIDENCE]** A separate Pew international survey (reported in 2026) found respondents in 34 of 37 countries more likely to expect AI to eliminate jobs than create them over 20 years. Reported via Pew search summary; release URL not confirmed. Cited from the same search summary as https://www.pewresearch.org/short-reads/2026/08/18/young-adults-in-the-us-are-increasingly-wary-of-ai/. Re-verify which Pew report this is.
- **[EVIDENCE (survey by a consultancy with a university; method is a proper panel survey)]** KPMG and University of Melbourne, "Trust, attitudes and use of artificial intelligence: A global study 2025": 48,000+ respondents in 47 countries, Nov 2024 to Jan 2025. 66% use AI regularly and intentionally; 46% are willing to trust it; trust has fallen and worry risen since the 2022 wave (17 countries). Marked differences between advanced and emerging economies (emerging economies more trusting). University of Melbourne figshare, 2025 (CC BY-NC-SA). https://figshare.unimelb.edu.au/articles/report/Trust_attitudes_and_use_of_artificial_intelligence_A_global_study_2025/28822919 ; press release: https://mbs.edu/news/global-study-reveals-trust-of-ai-remains-a-critical-challenge
- **[EVIDENCE (weak: online panel, 30 countries, not fully representative in emerging markets)]** Ipsos AI Monitor 2025: on average 52% say they are excited about AI products and services and 53% say AI makes them nervous. English-speaking countries most nervous and least excited; South-East Asia (Thailand, Indonesia, Malaysia) most excited, and excitement tracks belief that AI will help the national economy. Japan neither. Ipsos, June 2025. https://www.ipsos.com/en-dk/ipsos-ai-monitor-2025 (PDF: https://www.ipsos.com/sites/default/files/ct/news/documents/2025-06/Ipsos-AI-Monitor-2025_0.pdf). The 2026 edition (32 countries, June 2026) reportedly finds excitement and nervousness almost even and younger cohorts more nervous than older ones; seen only via a mirror PDF, not Ipsos: https://astrid-online.it/static/upload/protected/ipso/ipsos-ai-monitor-2026.pdf
- **[EVIDENCE (weak: PR-firm survey)]** Edelman Trust Barometer 2025 tech-sector report: 72% of Chinese respondents trust AI against 32% of Americans; Ireland, Australia, UK, Netherlands and Germany below 30%. Edelman, 2025. https://www.edelman.com/sites/g/files/aatuss191/files/fr/2025-08/Top%20Findings_2025%20EdelmanTrust%20Barometer_Insights%20for%20the%20Technology%20Sector%20%281%29.pdf . The 2026 Barometer showed global trust in technology companies down 3 points, with a starker drop for AI companies (Semafor, 11 Feb 2026). https://semafor.com/article/02/11/2026/trust-in-tech-companies-dropped-globally-in-2026-report
- **[EVIDENCE]** EU: Eurobarometer on AI and the future of work (published 13 Feb 2025): more than 60% of Europeans view robots and AI at work positively, over 70% think they improve productivity, and 84% say AI at work needs careful management to protect privacy and transparency. European Commission, 13 Feb 2025. https://digital-strategy.ec.europa.eu/en/news/commission-survey-shows-most-europeans-support-use-artificial-intelligence-workplace . Note: Commission press framing; question wording not checked.
- **[EVIDENCE]** UK: DSIT Public Attitudes to Data and AI Tracker, Wave 4 (fieldwork Jul/Aug 2024, published 16 Dec 2024, Savanta, n>5,000). Declining trust in organisations to keep data safe, especially social media and big tech; worries about misinformation and job displacement; over half think AI is already used in public services. No Wave 5 found. DSIT, 16 Dec 2024. https://www.gov.uk/government/publications/public-attitudes-to-data-and-ai-tracker-survey-wave-4

Unions and collective bargaining

- **[EVIDENCE]** WGA 2023 MBA (term 25 Sep 2023 to 1 May 2026): AI-generated material is not "literary material" or "source material", so it cannot undercut credit or separated rights; a writer may choose to use AI with company consent, but a company cannot require it; companies must disclose if material handed to a writer was AI-generated; WGA reserved the right to argue that training on writers' work is prohibited. WGA contract summary, 2023. https://wgacontract2023.org/the-campaign/summary-of-the-2023-wga-mba
- **[EVIDENCE]** WGA 2026: tentative four-year MBA approved unanimously by the negotiating committee on 4 Apr 2026, later ratified. Reports conflict on AI: some say it adds limits and licensing requirements on use of writers' scripts for AI training; an IndieWire summary says AI terms largely codify 2023. NPR/OPB, 6 Apr 2026. https://www.opb.org/article/2026/04/06/hollywood-studios-reach-a-tentative-agreement-with-writers-union/ . Contract text not checked.
- **[EVIDENCE]** SAG-AFTRA video game strike (began July 2024, the longest in the union's interactive history) ended when members ratified the 2025 Interactive Media Agreement 95.04% to 4.96% in July 2025. Terms: consent and disclosure for digital replicas, ability to suspend consent for new material during a strike, pay rise over 15% with further raises 2025-2027. PC Gamer, Jul 2025. https://www.pcgamer.com/gaming-industry/the-videogame-voice-actors-strike-officially-ends-as-performers-ratify-agreement-between-sag-aftra-and-publishers
- **[EVIDENCE]** SAG-AFTRA 2026 TV/Theatrical Agreement ratified 4 Jun 2026, 91.42% in favour on a 19.25% turnout, running to 30 Jun 2030. Reported AI terms: stronger digital-replica protections, restrictions on "synthetic performers", including a requirement that producers show "significant additional value" before using an AI performer; no strike right over AI until 2030. Fortune, 5 Jun 2026. https://fortune.com/2026/06/05/sag-aftra-approves-four-year-contract-studios-streamers/ ; RedShark News on the AI terms: https://www.redsharknews.com/sag-aftra-ai-deal-synthetic-actors-2026
- **[EVIDENCE]** Commonwealth Bank of Australia, Aug 2025: CBA cut 45 direct-banking roles citing a voice bot that it said cut call volumes by 2,000 a week. The Finance Sector Union took it to the Fair Work Commission, saying volumes were rising and staff were on overtime. CBA conceded the roles were not redundant and offered them back (or voluntary exit). Bloomberg, 21 Aug 2025. https://www.bloomberg.com/news/articles/2025-08-21/commonwealth-bank-reverses-job-cuts-decision-over-ai-chatbots ; union account: https://www.fsunion.org.au/win-cba-backflips-on-customer-service-job-cuts-admits-they-got-it-wrong/ . Note: the volume figures are the union's and CBA's competing claims; no independent data.
- **[EVIDENCE]** AFL-CIO and Microsoft, 11 Dec 2023: a partnership on AI information-sharing, worker input into AI development and policy, plus a neutrality framework for organising by AFL-CIO affiliates at Microsoft. No public record found of what it has produced since. Microsoft, 11 Dec 2023. https://news.microsoft.com/2023/12/11/afl-cio-and-microsoft-announce-new-tech-labor-partnership-on-ai-and-the-future-of-the-workforce/
- **[EVIDENCE]** UK TUC draft Artificial Intelligence (Regulation and Employment Rights) Bill, 18 Apr 2024, drafted by Robin Allen KC and Dee Masters with the Minderoo Centre (Cambridge): rights when employers use AI for "high-risk" decisions, and a ban on emotion recognition used to workers' detriment. No sign it was introduced in Parliament or adopted by government. TUC, 18 Apr 2024. https://www.tuc.org.uk/research-analysis/reports/artificial-intelligence-regulation-and-employment-rights-bill
- **[EVIDENCE (weak: union member survey, self-selected, n>2,300)]** National Nurses United survey (Jan to Mar 2024): 60% disagreed that their employer would implement AI with

patient safety first; where acuity algorithms are used, 69% said the outputs did not match their own assessment; 40% in facilities with predictive scores said they cannot override them. NNU called for a pause on AI in health care. NNU press release, May 2024. https://www.nationalnursesunited.org/press/national-nurses-united-survey-finds-ai-technology-undermines-patient-safety

- **[EVIDENCE]** Kaiser Permanente, 18 Mar 2026: about 2,400 NUHW mental health workers in Northern California and the Central Valley held a one-day unfair-labour-practice strike, centred on Kaiser's unilateral overhaul of mental-health triage and the union's fear of AI replacing therapist work (including AI note-taking). Talks were still unresolved in late April 2026. KQED, Mar 2026. https://www.kqed.org/news/12076753/northern-california-kaiser-therapists-hold-1-day-strike-over-ai-patient-care-concerns ; NUHW: https://home.nuhw.org/2026/03/17/kaiser-mental-health-strike-to-start-at-6am-wednesday-march-18/
- **[EVIDENCE]** ProPublica, 8 Apr 2026: the NewsGuild unit held a 24-hour strike over AI safeguards, layoff protections, just cause and wages; reported as the first US newsroom strike with AI protections as a central demand. Nieman Lab, Apr 2026. https://www.niemanlab.org/reading/unionized-propublica-staff-are-on-strike-over-ai-layoffs-and-wages/

Regulation: EU, enforced vs announced

- **[EVIDENCE]** EU AI Act original timetable: prohibitions from 2 Feb 2025, GPAI obligations from 2 Aug 2025, most high-risk obligations from 2 Aug 2026. The Digital Omnibus on AI (provisional deal 7 May 2026; Parliament plenary 16 Jun 2026, 423 for, 57 against, 174 abstentions; Council approval 29 Jun 2026) was published as Regulation (EU) 2026/1744 on 24 Jul 2026 and entered into force 27 Jul 2026. Standalone (Annex III) high-risk obligations move to 2 Dec 2027; high-risk AI embedded in regulated products to 2 Aug 2028. Article 50 transparency duties and the AI Office's powers to enforce against GPAI providers started on schedule on 2 Aug 2026. Sidley, 22 Jun 2026: https://datamatters.sidley.com/2026/06/22/eu-lawmakers-reach-provisional-agreement-to-delay-key-eu-ai-act-obligations/ ; National Law Review on entry into force: https://natlawreview.com/article/eu-digital-omnibus-ai-enters-force ; Gibson Dunn: https://www.gibsondunn.com/eu-ai-act-omnibus-agreement-postponed-high-risk-deadlines-and-other-key-changes/ . Regulation number and dates come from law-firm summaries; confirm on EUR-Lex.
- **[EVIDENCE, negative finding]** I found no credible report of any fine under the AI Act as of November 2026. One web page claims three Commission enforcement decisions totalling EUR 18.4 million on 14 Feb 2026; this is uncorroborated and conflicts with the Commission's GPAI fining powers only starting on 2 Aug 2026. Treat as false until shown otherwise. Penalty ceilings: up to EUR 35m or 7% of global turnover for prohibited practices; up to EUR 15m or 3% for GPAI providers.

Regulation: US federal

- **[EVIDENCE]** Executive order "Eliminating State Law Obstruction of National AI Policy", 11 Dec 2025: directs the Attorney General to set up an AI Litigation Task Force to challenge state AI laws (Commerce Clause, pre-emption, other theories); Commerce to identify "onerous" state laws, including those that would force models to "alter truthful outputs"; FTC to issue a policy statement on when consumer-protection law pre-empts state rules; FCC to consider a federal disclosure standard; conditions on federal broadband (BEAD) funding. Legal scholars and some Republican governors (DeSantis, Cox) argued an executive order cannot itself pre-empt state law without Congress. Ropes & Gray, Dec 2025: https://www.ropesgray.com/en/insights/alerts/2025/12/trump-attempts-to-preempt-state-ai-regulation-through-executive-order ; NPR

via WBHM, 11 Dec 2025: https://wbhm.org/npr-story/trump-is-trying-to-preempt-state-ai-laws-via-an-executive-order-it-may-not-be-legal/

- **[EVIDENCE]** Senate vote on the state-law moratorium: in the early hours of 1 July 2025, during the "vote-a-rama" on the One Big Beautiful Bill Act, the Senate voted 99-1 for an amendment led by Sen. Marsha Blackburn (R-TN), co-sponsored by Sen. Maria Cantwell (D-WA), to strip the proposed moratorium on state AI regulation. The Senate version had already been narrowed to deny states that regulate AI access to a new $500 million AI infrastructure fund. Sen. Ted Cruz, the provision's author, voted to strip it after Blackburn abandoned a compromise with him; Sen. Thom Tillis cast the only no vote. Republican and Democratic governors had lobbied against it for weeks. Nextgov/Route Fifty, 1 Jul 2025 (search extract). https://www.nextgov.com/artificial-intelligence/2025/07/senate-overwhelmingly-passes-amendment-removing-state-ai-moratorium/406448 ; PBS NewsHour: https://www.pbs.org/newshour/politics/senate-pulls-ai-regulatory-ban-from-gop-bill-after-complaints-from-states (search extract). Roll call not checked on senate.gov. Significance: Congress declined pre-emption by 99-1 five months before the executive branch tried to achieve it by order.
- **[EVIDENCE]** Follow-through on the order: Attorney General Pam Bondi set up the DOJ AI Litigation Task Force on 9 Jan 2026. Its first litigation step was to intervene (April 2026) in xAI's suit challenging the Colorado AI Act, the only state law named in the December 2025 order; reported as the first DOJ intervention against a state AI law. Commerce was due to list "onerous" state laws by 11 Mar 2026; one source said no list had been published (undated). Axios, 24 Apr 2026 (search extract): https://axios.com/2026/04/24/justice-department-joins-xai-challenge-colorado-ai-law ; Jenner & Block (search extract): https://www.jenner.com/en/news-insights/client-alerts/doj-joins-xai-in-lawsuit-challenging-colorado-ai-act . Colorado then repealed and replaced the law in May 2026 (below), which may moot the suit; outcome not found.
- **Not sourced in this session:** other Task Force suits, the Commerce list's contents, the FTC pre-emption policy statement, and any 2026 federal pre-emption legislation.

Regulation: US states, enforced vs announced

The pattern across states: laws are passed, then delayed, narrowed or thinly enforced before they bite. The only state AI-in-employment law with a multi-year enforcement record (NYC) was found by the state's own auditor to be weakly enforced.

- **[EVIDENCE]** Colorado AI Act (SB 24-205, 2024), the first comprehensive US state law on "high-risk" AI, never took effect in its original form. Governor Polis signed SB 25B-004 on 28 Aug 2025 in a special session, moving the effective date from 1 Feb 2026 to 30 Jun 2026 to allow amendment in the 2026 session. Greenberg Traurig, Sep 2025 (search extract). https://www.gtlaw.com/en/insights/2025/9/colorado-delays-comprehensive-ai-law-with-further-changes-anticipated
- **[EVIDENCE]** In May 2026 the legislature repealed and replaced it with SB 26-189 (passed Senate 7 May, House 9 May; signed 14 May 2026 by most accounts, one outlier says 18 May). The replacement drops the high-risk AI framework (impact assessments, risk-management programmes) for a narrower automated decision-making technology (ADMT) disclosure regime, effective 1 Jan 2027, enforced only by the Attorney General after a 60-day cure period, with no private right of action. Ropes & Gray, May 2026 (search extract): https://www.ropesgray.com/en/insights/alerts/2026/05/colorado-scales-back-ai-law-with-targeted-implications-for-health-care ; EPIC: https://epic.org/colorado-legislature-again-amends-landmark-ai-law/ ; Davis+Gilbert: https://www.dglaw.com/what-to-know-about-colorados-repeal-and-replacement-of-its-landmark-ai-act/ (search extracts). Bill text not checked on

leg.colorado.gov. Net effect: the flagship state AI law was announced in May 2024 and, two and a half years later, nothing in it has been enforced.

- **[EVIDENCE]** NYC Local Law 144 (automated employment decision tools: annual independent bias audit, candidate notice; enforced by the Department of Consumer and Worker Protection since July 2023). The New York State Comptroller's audit, issued 2 Dec 2025 and covering July 2023 to June 2025, found DCWP's enforcement ineffective. Secondary summaries say enforcement actions were rare, complaint handling weak and DCWP did not follow up to check violations were fixed; DCWP agreed to implement most recommendations. Penalties run up to $1,500 per violation per day. NY State Comptroller, 2 Dec 2025 (search extract): https://www.osc.ny.gov/state-agencies/audits/2025/12/02/enforcement-local-law-144-automated-employment-decision-tools ; DLA Piper, 30 Jan 2026 (search extract): https://www.dlapiper.com/en-au/insights/publications/2026/01/critical-audit-of-nyc-ai-hiring-law-signals-increased-risk-for-employers . Details such as "13 recommendations" and "32 bias audits reviewed" appear only in third-party blogs; check the audit PDF.
- **[EVIDENCE]** California SB 53, Transparency in Frontier Artificial Intelligence Act: signed 29 Sep 2025, effective 1 Jan 2026. Applies to frontier-model developers, with extra duties for "large frontier developers" (over $500m annual revenue with affiliates): publish a safety framework and a transparency report at or before each new or substantially modified frontier model release, report critical safety incidents (15 days per one guide), whistleblower protections, and a public compute consortium (CalCompute). Civil penalties up to $1m per violation, enforced by the Attorney General. It dropped SB 1047's third-party audits, shutdown capability and 72-hour reporting. Future of Privacy Forum (search extract): https://fpf.org/blog/californias-sb-53-the-first-frontier-ai-law-explained/ ; Clifford Chance, Oct 2025: https://www.cliffordchance.com/insights/resources/blogs/talking-tech/en/articles/2025/10/sb-53--california-sets-standards-for-ai-transparency.html (search extracts). No enforcement action found. Relevance to a deployer like Actualisation: none directly; it binds model developers.
- **[EVIDENCE]** Illinois HB 3773 (amends the Illinois Human Rights Act): from 1 Jan 2026 employers may not use AI in employment decisions in a way that discriminates on protected characteristics, or use zip codes as a proxy, and must notify employees of AI use. Enforced through the Illinois Department of Human Rights and Human Rights Commission, with a private right of action in circuit court. Bass Berry & Sims, 2025 (search extract). https://bassberry.com/news/texas-illinois-and-colorado-legislative-developments-impact-healthcare-ai-and-other-industries-while-u-s-congress-fails-to-pass-moratorium/ . No reported enforcement found.
- **[EVIDENCE]** Texas Responsible AI Governance Act (TRAIGA, HB 149): signed 22 Jun 2025, effective 1 Jan 2026. Much narrower than the bill first filed: it bans a short list of intentional harms (e.g. manipulation to self-harm, unlawful discrimination by intent, certain deepfakes), adds disclosure duties mainly for government agencies and health care, creates a regulatory sandbox, and gives enforcement to the Attorney General with a cure period and no private right of action. Reported penalties: $10,000-12,000 per curable violation, $80,000-200,000 per uncurable one, $2,000-40,000 per day for continuing violations. Norton Rose Fulbright (search extract): https://www.nortonrosefulbright.com/en-us/knowledge/publications/c6c60e0c/the-texas-responsible-ai-governance-act . Penalty figures vary across summaries; check the statute. No enforcement action found.

Regulation: UK

- **[EVIDENCE]** AI Opportunities Action Plan, published by DSIT on 13 Jan 2025, written by Matt Clifford (commissioned July 2024). Pro-adoption: AI Growth Zones, compute expansion, a National Data Library, public-sector adoption. The government accepted its recommendations

(the commonly cited count is 50; I did not confirm it in a search extract). Clifford left his role as the PM's AI adviser in mid-2025. GOV.UK (search extract). https://www.gov.uk/government/publications/ai-opportunities-action-plan/ai-opportunities-action-plan

- **[EVIDENCE]** On 14 Feb 2025, Technology Secretary Peter Kyle, at the Munich Security Conference, renamed the AI Safety Institute the AI Security Institute, refocusing it on national-security and criminal-misuse risks; reporting said it would drop work on bias and free speech. Announced alongside an MOU with Anthropic. GOV.UK speech (search extract): https://www.gov.uk/government/speeches/remarks-made-by-technology-secretary-peter-kyle-at-the-munich-security-conference ; TechCrunch, 13 Feb 2025: https://techcrunch.com/2025/02/13/uk-drops-safety-from-its-ai-body-now-called-ai-security-institute-inks-mou-with-anthropic
- **[EVIDENCE, negative finding]** No UK AI bill as of November 2026. The July 2024 King's Speech promised legislation on "the most powerful AI models"; it was repeatedly deferred, and law-firm commentary says the May 2026 King's Speech again contained no AI bill, only a Regulating for Growth Bill putting regulatory sandboxes on a statutory footing. Lewis Silkin, 14 Sep 2026 (search extract): https://www.lewissilkin.com/insights/2026/09/14/ai-judgment-day-on-the-horizon-while-uk-lawmakers-play-catch-up ; Resultsense roundup of Osborne Clarke, 28 May 2026 (search extract): https://www.resultsense.com/news/2026-05-28-uk-ai-regulatory-may-2026-roundup/ . Two low-quality sites claim a frontier AI bill was introduced on 14 May 2026; law-firm sources contradict them. The Lewis Silkin extract also mentions a change of Prime Minister that I could not confirm. Check bills.parliament.uk before relying on either.
- Net: the UK has a growth plan and a security-focused institute, but no binding AI-specific law. Worker-side proposals (TUC draft bill, below) have not been taken up.

Who captures the productivity surplus

- **[EVIDENCE]** US labour share (nonfarm business, share of output paid as compensation) was 54.4% in Q4 2025, 1.7% lower than a year earlier, while 2025 productivity grew 2.2% (output +2.6%, hours +0.4%) and unit labour costs 2.3%. BLS Productivity and Costs, revised Q4 2025 release, 24 Mar 2026 (search extract). https://www.bls.gov/news.release/archives/prod2_03242026.htm ; series: https://fred.stlouisfed.org/series/PRS85006173 . I could not confirm whether 54.4% is a series low; the long-run series is on FRED. Caution: a one-year labour-share fall in a year of strong productivity is consistent with gains flowing to capital, but 2025 productivity is not attributable to AI on this evidence alone.
- **[EVIDENCE (company guidance, via secondary aggregation)]** Hyperscaler capex for calendar 2026: Microsoft about $190bn (including about $25bn attributed to higher component prices), Alphabet $180-190bn (later raised to $195-205bn per one tracker), Amazon about $200bn, Meta $125-145bn (later $130-145bn), as guided on Q1 2026 calls (late April 2026). Totals reported at about $700-725bn (Q1 guidance) and $720-745bn (one tracker after Q2 results). Amazon's trailing 12-month free cash flow was reported at $1.2bn against $26bn a year earlier. Yahoo Finance, Apr-May 2026 (search extract): https://finance.yahoo.com/markets/article/magnificent-7-earnings-rush-reveals-ai-spending-surge-with-hyperscaler-capex-set-to-reach-725-billion-in-2026-224901707.html ; tracker (updated 11 Oct 2026): https://www.datacentres.com/guides/hyperscaler-capex-trends (search extracts). Definitions differ (finance leases included or not). Not checked against 10-Qs or call transcripts; Q3 2026 figures not found.
- **[FORECAST]** Evercore and Bank of America were reported to project combined big-tech capex above $1 trillion in 2027. Same Yahoo Finance extract. Treat as sell-side forecast.
- **[EVIDENCE]** Wage effects so far: Humlum and Vestergaard, "Large Language Models, Small Labor Market Effects" (NBER WP 33777, 2025): two adoption surveys (late 2023 and 2024) of 25,000 workers in 7,000 workplaces across 11 exposed occupations, linked to Danish

employer-employee registers, difference-in-differences using employer AI policies. No significant effect on earnings or recorded hours in any occupation, with confidence intervals ruling out large effects; reported time savings were small, and summaries say only about 3-7% of productivity gains passed through to pay. A 2026 update ("Still Waters, Rapid Currents", RFBerlin discussion paper) reframes the result as task reorganisation, with adopters moving into higher-paying occupations, still too few to shift average earnings. NBER (search extract): https://econpapers.repec.org/RePEc:nbr:nberwo:33777 ; 2026 update: https://ideas.repec.org/p/crm/wpaper/26078.html (search extract). Conflicting: a CPS-based working paper reports earnings rises in highly exposed US occupations after ChatGPT with no change in unemployment. arXiv 2509.15510 (search extract): https://arxiv.org/html/2509.15510v1 . Different data and identification; not directly comparable.

- **[FORECAST, academic]** Acemoglu, "The Simple Macroeconomics of AI" (NBER WP 32487, 2024; Economic Policy 40(121), 13-58, 2025): using task-exposure and task-level productivity estimates, AI adds no more than 0.66% to total factor productivity over 10 years (about 0.06 pp a year), and under 0.53% once harder-to-learn tasks are allowed for; GDP effect about 0.9-1.2% over the decade. He also argues AI is unlikely to reduce inequality between capital and labour. NBER (search extract): https://www.nber.org/papers/w32487
- Reading (OPINION, mine): the surplus question in 2026 has two sides. Capital is being committed (about $700bn+ a year by four firms) on a scale that requires most of the gains to accrue to platform owners for the spend to pay back. Labour's share fell in 2025. The best micro evidence (Denmark) shows workers have so far captured little of the measured time savings as pay. None of this shows AI is causing the labour-share shift yet. For the thesis: if workers expect the gains to go elsewhere (and the early data say they mostly do), "resistance" is a rational response to distribution, not a failure to adapt.

The anti-AI position at its strongest

Copyright: the courts have split the question, and the money has moved anyway.

- **[EVIDENCE]** Bartz v. Anthropic (N.D. Cal., No. 3:24-cv-05417). June 2025: Judge Alsup ruled that training Claude on lawfully acquired books was fair use, but that downloading and keeping more than 7 million pirated books in a permanent "central library" was not. Class settlement of $1.5bn, about $3,000 per work before fees, covering roughly 465,000-500,000 works (sources differ); preliminary approval by Judge Alsup on 25 Sep 2025; final approval by Judge Araceli Martínez-Olguín on 20 Jul 2026, who rejected objections that the price was too low. Because it settled, the fair-use ruling will not reach an appeals court. JURIST, Jul 2026 (search extract): https://www.jurist.org/news/2026/07/judge-approves-record-1-5-billion-settlement-involving-anthropic/ ; Insurance Journal on preliminary approval, 26 Sep 2025: https://amp.insurancejournal.com/news/national/2025/09/26/840753.htm (search extracts). Docket not checked.
- **[EVIDENCE]** Thomson Reuters v. Ross Intelligence: on 29 Sep 2026 the Third Circuit (No. 25-2153, precedential) affirmed that Ross's copying of 2,243 Westlaw headnotes to train a legal-research AI was not fair use, relying on Warhol (2023) and stressing that Ross built a competing product. Reported as the first federal appellate ruling on fair use in AI training. Commentators note it predates generative AI and involves a direct competitor, so it does not settle generative training on public web content. Haynes Boone (search extract): https://www.haynesboone.com/news/alerts/third-circuit-rejects-fair-use-for-rosss-copying-of-westlaw-headnotes ; LawNext, Oct 2026: https://www.lawnext.com/2026/10/no-more-than-an-ordinary-copyright-case-3rd-circuit-unseals-its-opinion-in-thomson-reuters-case-against-ross.html (search extracts).

- The strongest version of the critics' copyright case is now: the one appellate court to rule found no fair use where the AI competes with the source, and the largest trial-court case cost the defendant $1.5bn on acquisition, not training. The strongest version of the industry case: the only generative-AI ruling on training itself (Alsup) found fair use.

Energy:

- **[EVIDENCE + FORECAST]** IEA "Energy and AI" (April 2025): data centres used about 415 TWh in 2024, about 1.5% of world electricity (US 45%, China 25%, Europe 15%). Base case: about 945 TWh by 2030, more than double, with AI the largest driver; about 1,200 TWh by 2035 in the base case and up to 1,720 TWh in a high case. Data centres account for nearly half of US electricity demand growth to 2030. About 20% of planned data-centre projects could be delayed by grid constraints. IEA, Apr 2025 (search extract). https://www.iea.org/reports/energy-and-ai/executive-summary
- **[EVIDENCE + FORECAST]** LBNL "2024 United States Data Center Energy Usage Report" (Shehabi et al., 19 Dec 2024, congressionally requested): US data-centre electricity use more than doubled between 2017 and 2023, driven by GPU servers; by 2028 it could reach 6.7% to 12% of US electricity (74-132 GW in the extract's units, as reported). LBNL (search extract). https://energyanalysis.lbl.gov/publications/2024-lbnl-data-center-energy-usage-report ; full text: https://escholarship.org/uc/item/32d6m0d1 . The commonly cited "4.4% of US electricity in 2023" was not confirmed in the extract; check the report.
- Reading: as a share of global electricity the footprint is small (1.5%); the political force comes from its concentration (US local grids, half of US demand growth) and from the speed of growth, which is where the data-centre siting fights in the opinion data come from.
- **Not sourced in this pass:** water-use estimates; Bender, Gebru et al. (2021); Acemoglu; Marcus; Zitron. The Amazon free-cash-flow figure above is the kind of number Zitron's revenue-vs-capex critique rests on.

The "AI advice" grifter layer

- **[EVIDENCE]** FTC "Operation AI Comply", announced 25 Sep 2024: five actions. DoNotPay ("world's first robot lawyer") agreed to pay $193,000 and notify subscribers about the limits of its service (proposed order; final status not confirmed in the extract). Ascend Ecom (an AI-powered e-commerce "business opportunity"): FTC alleged at least $25m in consumer losses; a federal court temporarily halted it. FBA Machine/Passive Scaling: alleged losses up to $15.9m; temporary restraining order. Ecommerce Empire Builders and Rytr (AI review generator) completed the five. Coverage, Sep 2024 (search extracts): https://siliconangle.com/2024/09/25/ftc-cracks-misleading-ai-powered-business-schemes-new-initiative/ ; https://venturebeat.com/ai/ftc-crackdown-on-donotpay-and-others-is-warning-for-all-ai-powered-companies . FTC press releases (ftc.gov) not retrievable. Final outcomes for Ascend and FBA Machine not confirmed this pass.
- **[EVIDENCE]** DoNotPay final order announced 11 Feb 2025 (Commission vote 5-0): $193,000, notice to 2021-2023 subscribers, and a ban on claiming it performs like a lawyer without evidence. Slashdot summary of the FTC release (search extract): https://tech.slashdot.org/story/25/02/11/1932223/ . Small money: the significance is the precedent on "robot lawyer" claims.
- **[EVIDENCE]** Later FTC AI cases: Click Profit (March 2025), an AI-powered "passive income" Amazon-store scheme; the FTC said the touted AI and brand partnerships did not exist, alleged at least $14m in losses, a court temporarily halted it, and a proposed settlement was announced in August 2025. NBC News, Mar 2025 (search extract): https://www.nbcnews.com/business/business-news/amazon-ai-scammers-duped-investors-millions-passive-income-

scheme-ftc-rcna196931 . Workado: final consent order (3-0) barring unsupported claims that its AI-content detector was "98 percent accurate", no money. Crowell (search extract): https://www.crowell.com/en/insights/client-alerts/ftc-cracks-down-on-ai-models-ai-detection-claims . Air AI (sued 25 Aug 2025, D. Ariz.): the FTC alleged it sold small businesses a "conversational AI" agent claimed to run autonomously and replace staff, which "does not function as advertised"; outcome not found. DLA Piper, Aug 2025 (search extract): https://www.dlapiper.com/en/insights/publications/2025/08/ftcs-latest-ai-washing-case

- Air AI matters most for this research: it is the first FTC case found that targets "agents that replace your employees" claims sold to small businesses, exactly the pitch an agentic-AI vendor makes.
- **[EVIDENCE]** SEC "AI washing": first settlements March 2024 against investment advisers Delphia ($225,000 penalty) and Global Predictions ($175,000) for false claims about using AI. January 14, 2025: Presto Automation, the first against a public company, over its drive-thru voice AI (cease-and-desist, no penalty); reporting says most orders needed human intervention (a 70% figure circulates; not checked against the order). April 9, 2025: SEC and SDNY filed parallel civil and criminal (wire fraud) charges against Albert Saniger, founder of shopping app Nate, which allegedly relied on human workers abroad while claiming AI automation. Ropes & Gray, Jan 2025 (search extract): https://www.ropesgray.com/en/insights/alerts/2025/01/ai-washing-enforcement-in-the-final-days-of-the-gensler-administration ; Weil, Q2 2025 (search extract): https://www.weil.com/-/media/mailings/2025/q2/recent-sec-and-doj-enforcement-actions-and-charges-signal-that-aiwashing-is-firmly-within-the-crossh.pdf
- Reading (OPINION, mine): regulators have so far policed two things: get-rich-quick "AI business" schemes sold to consumers, and companies claiming AI they did not have. Nate and Presto are cases of humans hidden behind an "AI" label, which is the inverse of the thesis's failure mode. No data found on the size of the AI course and advice market.

Viral statistics traced

- **"79% of Americans don't trust businesses to use AI responsibly."** Widely repeated (e.g. tech.co). It comes from an earlier Bentley-Gallup wave (2023, when trust was 21%), not the 2025 wave (31% trust). The 2026 figure is 27% trust. Anyone citing "79%" in 2026 is also at risk of confusing it with Gallup's separate 2026 figure of 79% expecting fewer jobs. Sources: https://www.bentley.edu/news/do-americans-trust-business-and-ai ; https://news.gallup.com/poll/712751/americans-cool-toward.aspx
- **"Nearly half of Americans say AI does more harm than good."** Decrypt's coverage of the 2026 Gallup release; Gallup's own figures as summarised are 39% (2026) and 31% (2025), with about half saying harm and good are equal. Use Gallup's number. https://news.gallup.com/poll/712751/americans-cool-toward.aspx
- **"Half of Americans are more concerned than excited."** Solid: Pew, probability panel, repeated since 2021, now 52%. Note it is about AI "in daily life", not about AI at work.
- **"EU fined companies EUR 18.4m under the AI Act in February 2026."** Appears on a low-quality web page; no official source found; timeline makes it implausible. Do not cite.
- **"Colorado's AI Act takes effect June 30, 2026."** Still repeated in compliance content. It was repealed and replaced by SB 26-189 in May 2026; the replacement takes effect 1 Jan 2027. https://www.ropesgray.com/en/insights/alerts/2026/05/colorado-scales-back-ai-law-with-targeted-implications-for-health-care (search extract)
- **"Anthropic paid $1.5bn for training on books."** Misleading. The trial court held training on lawfully acquired books was fair use; the liability exposure came from downloading and

storing pirated copies. https://www.jurist.org/news/2026/07/judge-approves-record-1-5-billion-settlement-involving-anthropic/ (search extract)

- **"Data centres use 4.4% of US electricity."** Widely attributed to LBNL's 2024 report; search extracts confirmed only the report's 6.7-12% projection for 2028 and the "more than doubled 2017-2023" finding. Check the report before citing 4.4%. https://escholarship.org/uc/item/32d6m0d1
- **"UK to introduce AI bill in 2026."** Two low-quality sites claim a frontier AI bill was introduced on 14 May 2026; law-firm sources say the May 2026 King's Speech contained none. Do not cite without bills.parliament.uk. https://www.lewissilkin.com/insights/2026/09/14/ai-judgment-day-on-the-horizon-while-uk-lawmakers-play-catch-up (search extract)

Strongest counter-evidence

Against the thesis ("AI fails because the business isn't ready; people resist a new way of working"):

- **Resistance is mostly about distribution and job security, not about learning a new way of working.** Rising concern tracks expected job loss (Pew 71%, Gallup 79%) and distrust of employers' motives (Gallup 27% trust; NNU 60% distrust employer's priorities). People are using AI at high rates while distrusting it (KPMG: 66% use, 46% trust). The barrier is "whose interest does this serve", which no amount of shared context fixes.
- **The CBA case is a technology and measurement failure.** The bank claimed a 2,000-calls-a-week reduction that its own staffing (overtime, team leaders on phones) contradicted. The business was "ready" enough to deploy; the bot did not do what was claimed. Unions caught it, not change management.
- **Workers in the Kaiser and NNU cases object to AI decisions they cannot override.** That is an argument about authority and accountability in the workflow, not about undocumented processes.
- **Distribution evidence makes resistance rational.** Labour share fell in 2025 (BLS, 54.4% in Q4) and the Danish register study finds chatbot use has not raised earnings or hours, with little of the time saved reaching pay. If the gains go to capital (hyperscaler capex of about $700bn+ in 2026 needs them to), workers' reluctance is a reasonable reading of incentives, not a readiness problem.
- **Some AI failures are vendor over-claiming, not buyer unreadiness.** The FTC's Air AI complaint (Aug 2025) alleges an agent sold to small businesses as able to replace staff "does not function as advertised". The SEC's Presto and Nate cases involved "AI" that was largely humans. When the product does not do what was sold, no amount of process documentation fixes it.

Against the mainstream reading of this track:

- **Europeans are more positive about AI at work than headline concern suggests** (Eurobarometer: >60% positive, >70% expect productivity gains). Concern about AI "in daily life" and acceptance of AI "at work" are different questions, and much of the "public hates AI" narrative rests on the former.
- **Asia is positive.** South Korea, India, South-East Asia and China report low concern and high trust. "Public backlash" is mostly an Anglosphere and southern European phenomenon in this data.
- **Unions are bargaining, not blocking.** Every major entertainment dispute ended in a ratified contract that permits AI with consent, disclosure and pay. The 2026 SAG-AFTRA deal reportedly gives up AI strike rights until 2030.

- **Regulation is not the binding constraint in 2026.** The EU delayed its heaviest obligations to 2027-2028 and has no known fines; the US executive branch is actively trying to weaken state rules. Colorado repealed its own flagship law before it took effect, Texas's TRAIGA was cut down before passage, the UK has no AI bill, and the one long-running US AI employment law (NYC LL144) was found poorly enforced. Litigation (copyright) and consumer-protection enforcement (FTC) have bitten harder than AI-specific statutes.
- **The energy critique is real but often overstated globally.** Data centres were about 1.5% of world electricity in 2024 (IEA). The force of the critique is local (US grids: nearly half of US demand growth to 2030), not global.

Open questions

Items still to source after the gap-fill pass:

1. UK: confirm on bills.parliament.uk that no AI bill has been introduced; confirm the Action Plan's recommendation count; ONS labour-share data.
2. US federal: whether the Commerce "onerous laws" list was published; FTC pre-emption policy statement; other Task Force suits; fate of xAI/DOJ v. Colorado after the repeal; any 2026 pre-emption bill.
3. US states: any enforcement action under SB 53, TRAIGA or Illinois HB 3773 (none found); whether DCWP's NYC LL144 enforcement changed after the audit; the audit PDF's own numbers.
4. Surplus capture: Q3 2026 capex from filings; whether 54.4% is a series low; Acemoglu and Johnson "Power and Progress" as OPINION.
5. Anti-AI case: NYT v. OpenAI and Getty v. Stability status; water-use estimates; Bender, Gebru et al. 2021; Marcus; Zitron. Label argument as OPINION.
6. Grifter layer: final outcomes for Ascend Ecom, FBA Machine, Air AI; any data on the size of the AI course and consultancy market.
7. Whether the 2026 WGA contract actually changed the AI terms (contract text vs IndieWire's "largely unchanged").
8. Outcome of the Kaiser NUHW dispute after April 2026.

What's genuinely uncertain

- Whether the 2026 souring in US opinion is durable or a cycle tied to layoff news, data-centre fights and the election year. Gallup's harm figure went 40% (2023), 31% (2025), 39% (2026): it has reversed before.
- Whether concern changes behaviour. Use keeps rising while trust falls. There is no good evidence linking public concern to slower enterprise adoption.
- Whether union contract language bites. None of the entertainment AI clauses has, to my knowledge, been tested in arbitration (not verified this session).
- Whether the US pre-emption push survives the courts and Congress, and whether the EU's delay becomes a pattern of further delay.
- Exact numbers in this file: none was checked against the primary page text in this session.
- Whether copyright liability for AI training will turn on acquisition (Bartz) or on market substitution (Ross). The two leading decisions point different ways and neither concerns a general-purpose model on appeal.

- Whether the 2025 fall in US labour share is cyclical or the start of an AI-driven shift. One year of data cannot tell.

Numbers for the facts file

Figure	What it measures	Source	URL	Date	Reliability note
52%	US adults more concerned than excited about AI in daily life (37% in 2021)	Pew, n=3,488, Jun 22-28 2026	https://www.pewresearch.org/short-reads/2026/08/18/young-adults-in-the-us-are-increasingly-wary-of-ai/	18 Aug 2026	Probability panel; seen via search summary only
71%	US adults expecting AI to mean fewer jobs over 20 years (64% in 2024)	Pew	same as above	18 Aug 2026	As above
55%	US adults under 30 more concerned than excited	Pew	same as above	18 Aug 2026	As above
+17 pts	Rise in Democrats expecting fewer jobs from AI	Pew	https://www.pewresearch.org/short-reads/2026/09/16/democrats-are-now-more-worried-than-republicans-about-ai-and-its-impact-on-jobs/	16 Sep 2026	Search summary only; base years not confirmed
34% / 42% / 16%	25-country median: more concerned / equally / more excited	Pew Global Attitudes, spring 2025	https://www.pewresearch.org/global/2025/10/15/how-people-around-the-world-view-ai/	15 Oct 2025	Strong method; search summary only
50% vs 16%	More concerned than excited: US (and Italy) vs South Korea	Pew Global Attitudes	same as above	15 Oct 2025	As above
39%	US adults saying AI does more harm than good (31% 2025, 40% 2023)	Gallup/ Bentley	https://news.gallup.com/poll/712751/americans-cool-toward.aspx	Jul 2026	Gallup web panel; Decrypt reports a conflicting higher figure
79%	US adults expecting AI to reduce US jobs over 10 years (73% 2025)	Gallup/ Bentley	same as above	Jul 2026	As above
27%	US adults trusting business to use AI responsibly (31% 2025, 21% 2023)	Gallup/ Bentley	same as above	Jul 2026	As above
66% / 46%	Regular AI use / willing to trust AI, 47 countries	KPMG & Univ. of Melbourne, n>48,000	https://figshare.unimelb.edu.au/articles/report/Trust_attitudes_and_use_of_artificial_intelligence_A_global_study_2025/28822919	2025 (fieldwork Nov 2024 to Jan 2025)	Large multi-country panel; consultancy co-author
52% / 53%	Excited / nervous about AI products, 30-country average	Ipsos AI Monitor 2025	https://www.ipsos.com/en-dk/ipsos-ai-monitor-2025	Jun 2025	Online panel; less representative in emerging markets
72% vs 32%	Trust in AI, China vs US	Edelman 2025 tech report	https://www.edelman.com/sites/g/files/aatuss191/files/fr/2025-08/Top%20Findings_2025%20EdelmanTrust%20Barometer_Insights%20for%20the%20Technology%20Sector%20%281%29.pdf	Aug 2025	PR-firm survey
>60% / 84%	Europeans positive on AI at work / want careful management	Eurobarometer via Commission	https://digital-strategy.ec.europa.eu/en/news/commission-survey-shows-most-europeans-support-use-artificial-intelligence-workplace	13 Feb 2025	Commission press framing
95.04%	SAG-AFTRA video game agreement ratification	PC Gamer	https://www.pcgamer.com/gaming-industry/the-videogame-voice-actors-strike-officially-ends-as-	Jul 2025	Union-reported tally

Figure	What it measures	Source	URL	Date	Reliability note
	vote, ending strike begun Jul 2024		performers-ratify-agreement-between-sag-aftra-and-publishers		
91.42% (19.25% turnout)	SAG-AFTRA 2026 TV/ Theatrical ratification	Fortune	https://fortune.com/2026/06/05/sag-aftra-approves-four-year-contract-studios-streamers/	5 Jun 2026	Union-reported tally
45 roles	CBA customer-service jobs cut for voice bot, then reinstated	Bloomberg; FSU	https://www.bloomberg.com/news/articles/2025-08-21/commonwealth-bank-reverses-job-cuts-decision-over-ai-chatbots	21 Aug 2025	Volume claims disputed between bank and union
~2,400	Kaiser NUHW mental-health workers in one-day AI-related strike	KQED; NUHW	https://www.kqed.org/news/12076753/northern-california-kaiser-therapists-hold-1-day-strike-over-ai-patient-care-concerns	18 Mar 2026	Some outlets say "more than 2,000"
60% / 69%	Nurses distrusting employer AI priorities / acuity scores mismatching own judgment	NNU survey, n>2,300	https://www.nationalnursesunited.org/press/national-nurses-united-survey-finds-ai-technology-undermines-patient-safety	May 2024	Union member survey, self-selected
2 Dec 2027 / 2 Aug 2028	New EU AI Act high-risk dates (standalone / embedded) after Digital Omnibus	Sidley; National Law Review	https://datamatters.sidley.com/2026/06/22/eu-lawmakers-reach-provisional-agreement-to-delay-key-eu-ai-act-obligations/	Jun-Jul 2026	Law-firm summaries; confirm on EUR-Lex
423-57-174	European Parliament vote on AI omnibus deal	Industry summary	https://www.europeanoutdoorgroup.com/members-knowledge-hub/european-parliament-adopts-provisional-agreement-on-ai-omnibus	16 Jun 2026	Secondary source; confirm on EP site
0	Known AI Act fines as of Nov 2026	Negative search result	n/a	Nov 2026	Absence of evidence; recheck
99-1	Senate vote to strip state-AI-law moratorium from budget bill	Nextgov/ Route Fifty	https://www.nextgov.com/artificial-intelligence/2025/07/senate-overwhelmingly-passes-amendment-removing-state-ai-moratorium/406448	1 Jul 2025	Search extract; roll call not checked on senate.gov
1 Jan 2027	Effective date of Colorado's replacement AI law (SB 26-189); original act never took effect	Ropes & Gray	https://www.ropesgray.com/en/insights/alerts/2026/05/colorado-scales-back-ai-law-with-targeted-implications-for-health-care	May 2026	Search extract; signing date 14 May (one source 18 May)
$1,500	Max NYC LL144 penalty per violation per day; enforcement found ineffective	NY State Comptroller; DLA Piper	https://www.osc.ny.gov/state-agencies/audits/2025/12/02/enforcement-local-law-144-automated-employment-decision-tools	2 Dec 2025	Search extract; audit PDF not read
$1m	Max SB 53 civil penalty per violation (large frontier developers, >$500m revenue)	FPF	https://fpf.org/blog/californias-sb-53-the-first-frontier-ai-law-explained/	Effective 1 Jan 2026	Search extract
54.4%	US nonfarm business labour share, Q4 2025 (down 1.7% y/y); 2025 productivity +2.2%	BLS Productivity and Costs	https://www.bls.gov/news.release/archives/prod2_03242026.htm	24 Mar 2026	Official statistic, search extract; subject to revision
~$700-745bn	Combined 2026 capex guidance, Microsoft, Alphabet, Amazon, Meta	Yahoo Finance; datacentres.com tracker	https://finance.yahoo.com/markets/article/magnificent-7-earnings-rush-reveals-ai-spending-surge-with-hyperscaler-capex-set-to-reach-725-billion-in-2026-224901707.html	Apr-Oct 2026	Company guidance via aggregators; definitions differ; not from filings
0 (CI rules out large effects)	Effect of AI chatbot adoption on earnings and hours, Denmark, 25,000 workers	Humlum & Vestergaard, NBER WP 33777	https://econpapers.repec.org/RePEc:nbr:nberwo:33777	2025	Strong design; early period (2023-24); search extract
<=0.66 %			https://www.nber.org/papers/w32487	2024/2025	Academic forecast

Figure	What it measures	Source	URL	Date	Reliability note
	Upper bound on 10-year TFP gain from AI (0.53% adjusted)	Acemoglu, Economic Policy			
$1.5bn (~$3,000/work)	Bartz v. Anthropic class settlement, final approval 20 Jul 2026	JURIST	https://www.jurist.org/news/2026/07/judge-approves-record-1-5-billion-settlement-involving-anthropic/	Jul 2026	Search extract; docket not checked
2,243	Westlaw headnotes copied by Ross; Third Circuit: not fair use	Haynes Boone; LawNext	https://www.haynesboone.com/news/alerts/third-circuit-rejects-fair-use-for-rosss-copying-of-westlaw-headnotes	29 Sep 2026	Search extract; opinion not read
415 TWh (1.5%) to ~945 TWh	Global data-centre electricity 2024 to 2030 (base case)	IEA, Energy and AI	https://www.iea.org/reports/energy-and-ai/executive-summary	Apr 2025	Agency projection; search extract
6.7-12%	Projected US data-centre share of electricity by 2028	LBNL (Shehabi et al.)	https://energyanalysis.lbl.gov/publications/2024-lbnl-data-center-energy-usage-report	19 Dec 2024	Range reflects scenario uncertainty
$193,000	DoNotPay FTC final order (5-0)	FTC via Slashdot	https://tech.slashdot.org/story/25/02/11/1932223/	11 Feb 2025	Search extract
$25m / $15.9m / $14m	Alleged consumer losses: Ascend Ecom / FBA Machine / Click Profit	FTC complaints via press	https://siliconangle.com/2024/09/25/ftc-cracks-misleading-ai-powered-business-schemes-new-initiative/	2024-2025	Allegations, not findings
$225k + $175k	SEC penalties, Delphia and Global Predictions (first AI-washing cases)	Baker McKenzie; Ropes & Gray	https://www.ropesgray.com/en/insights/alerts/2025/01/ai-washing-enforcement-in-the-final-days-of-the-gensler-administration	Mar 2024	Search extract

Verbatim quotes

None. No source page could be opened in this session, so no wording could be confirmed. Quotes seen only in search snippets (for example Florida Governor DeSantis saying, in substance, that an executive order cannot pre-empt state legislation) are paraphrased in the findings above.

Sources worth reading in full

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3. KPMG and University of Melbourne, "Trust, attitudes and use of AI: A global study 2025": the use-vs-trust gap, including workplace questions, 47 countries. https://figshare.unimelb.edu.au/articles/report/Trust_attitudes_and_use_of_artificial_intelligence_A_global_study_2025/28822919
4. Gallup/Bentley, "Americans Cool Toward AI" (Jul 2026): the trend break in 2026 with trust-in-business series since 2023. https://news.gallup.com/poll/712751/americans-cool-toward.aspx
5. Pew, young adults and AI (Aug 2026) and partisan views (Sep 2026): where the shift is coming from. https://www.pewresearch.org/short-reads/2026/08/18/young-adults-in-the-us-are-increasingly-wary-of-ai/
6. WGA 2023 MBA summary: the template most other AI bargaining copies. https://wgacontract2023.org/the-campaign/summary-of-the-2023-wga-mba

7. Finance Sector Union on the CBA reversal: a rare documented case of an AI redundancy reversed on the facts. https://www.fsunion.org.au/win-cba-backflips-on-customer-service-job-cuts-admits-they-got-it-wrong/
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10. TUC draft AI bill: the most concrete worker-side legislative text in the UK. https://www.tuc.org.uk/research-analysis/reports/artificial-intelligence-regulation-and-employment-rights-bill
11. NY State Comptroller, audit of DCWP enforcement of Local Law 144 (Dec 2025): the only official audit of a US AI employment law in operation. https://www.osc.ny.gov/state-agencies/audits/2025/12/02/enforcement-local-law-144-automated-employment-decision-tools
12. Humlum and Vestergaard, "Large Language Models, Small Labor Market Effects" (NBER 2025) and the 2026 update: the strongest register-data evidence on wages and hours. https://econpapers.repec.org/RePEc:nbr:nberwo:33777
13. IEA, "Energy and AI" (Apr 2025): the reference numbers for the energy debate. https://www.iea.org/reports/energy-and-ai/executive-summary
14. Third Circuit opinion, Thomson Reuters v. Ross (Sep 2026), via LawNext: first appellate ruling on AI training and fair use. https://www.lawnext.com/2026/10/no-more-than-an-ordinary-copyright-case-3rd-circuit-unseals-its-opinion-in-thomson-reuters-case-against-ross.html
15. FTC complaint against Air AI (Aug 2025), via DLA Piper: what regulators treat as deceptive in agent marketing to small businesses. https://www.dlapiper.com/en/insights/publications/2025/08/ftcs-latest-ai-washing-case
16. Ropes & Gray on Colorado's repeal and replacement (May 2026): the clearest case of a state AI law announced and then withdrawn. https://www.ropesgray.com/en/insights/alerts/2026/05/colorado-scales-back-ai-law-with-targeted-implications-for-health-care